



Workplace Anti-Violence and Harassment Policy

Hadi Hossein Nejad

Director, Corporate Affairs

Published 6/29/2022

CPCS is committed to providing a safe, productive and healthy working environment for its employees (which term includes exclusive associates) based on mutual respect and inclusion. CPCS will take all reasonable measures to ensure job candidates, employees, exclusive associates or any third party visiting CPCS' offices are not subject to any form of workplace violence or harassment. This commitment applies to all areas of business, including training, performance, assessment, promotions, transfers, layoffs, remuneration, and all other employment practices and working conditions.

In pursuit of this goal, CPCS does not condone and will not tolerate acts of workplace violence or harassment against or by any CPCS employee, including from third parties with which CPCS has a business relationship (such as clients, partners and subcontractors). This policy sets out CPCS' anti-violence and anti-harassment policy, including how incidents of workplace violence and harassment will be handled and investigated.

Employees are responsible to adhere to this policy.

Definitions and Scope of Policy

Workplace Violence

"Workplace violence" means:

- the exercise of physical force by a person against an employee, in the workplace, that causes or could cause physical injury to the employee;
- an attempt to exercise physical force against an employee, in a workplace, that could cause physical injury to the employee; or
- a statement or behavior which is reasonable for an employee to interpret as a threat to exercise physical force against the employee, in the workplace, that could cause physical injury to the employee.

Workplace Harassment

"Workplace harassment" means:

- engaging in a course of vexatious comment or conduct against a worker in a workplace that is known or ought reasonably to be known to be unwelcome;
- workplace sexual harassment; or
- workplace racial/ethnic harassment.

Workplace Sexual Harassment

"Workplace sexual harassment" means:

- engaging in a course of vexatious comment or conduct against an employee in the workplace because of sex, sexual orientation, gender identity, or gender expression, where the course of comment or conduct is known or ought reasonably to be known to be unwelcome, or
- making a sexual solicitation or advance where the person making the solicitation or advance is in a position to confer, grant, or deny a benefit or advancement to the employee and the person knows or ought reasonably to know that the solicitation or advance is unwelcome.

Workplace Racial/Ethnic Harassment

"Workplace racial/ethnic harassment" means engaging in a course of vexatious comment or conduct against an employee in the workplace because of racial or ethnic origin, ancestry, color, place of origin, creed or citizenship.

Bullying

Bullying may be characterized as offensive, intimidating, malicious or insulting behaviour, an abuse or misuse of power through means intended to undermine,

humiliate, denigrate or injure the recipient.

Frequency

Bullying and harassment can be persistent or an isolated incident.

Scope of Application

For the purposes of this policy, workplace violence or harassment includes workplace violence or harassment:

- At the workplace;
- At employment-related social functions;
- In the course of work assignments outside the workplace;
- During work-related travel;
- Over the telephone or other means of electronic communication, if the conversation is work-related; or
- Elsewhere, if the employee is there as a result of work-related responsibilities.

Reasonable day-to-day actions by CPCS or a manager that helps manage, guide, or direct employees or the workplace and employee performance reviews, counselling, or discipline by CPCS or a manager do **not** constitute workplace harassment.

Training

CPCS will provide all employees with appropriate training and information regarding the company's violence and harassment prevention practices and procedures.

Reporting and Investigations of Workplace Violence and Harassment

Reporting Incidents

An employee who believes they have been subject to workplace violence or workplace harassment should submit a complaint to the HR Manager or the HR Officer. The complaint should be made as soon as possible following the incident and must include the following information:

- The date and time of the incident;
- The name of any persons involved in the incident;

- The name of any person who witnessed the incident; and
- A thorough description of what occurred.

An employee who believes they have been subject to workplace harassment may also choose to confront the harasser without submitting a complaint. They can confront the harasser directly or by through writing, detailing the unwelcome behaviour and requesting it to stop. If the harassment does not immediately stop or, if having stopped, it resumes, the employee should file a complaint.

Investigation Procedures

Once a complaint has been received, the HR Manager or the HR Officer will complete a thorough investigation. They will ensure that, barring exceptional circumstances, the investigation is completed within 30 days of the complaint being filed.

The investigation will include at a minimum:

- Informing the respondent of the complaint and providing them with a copy of the complaint; and
- Interviewing the complainant, the respondent and any person who may have witnessed the incident.

All of the above information will be documented and used to determine whether an incident of workplace violence or workplace harassment has occurred. If necessary, the HR Manager or the HR Officer may seek necessary assistance from CPCS' or outside personnel.

Investigation Report

Upon completion of the investigation, CPCS will provide both the complainant and the respondent a with a written summary of the findings of the investigation and any corrective action, including disciplinary measures imposed, that has been or will be taken as a result of the investigation. This written investigation report will be provided within 10 days of the investigation being completed.

Disciplinary Measures

Any disciplinary measures (up to and including termination of employment) will be determined by senior management (managing partners, reporting manager and HR) and will be proportional to the seriousness of the workplace violence or workplace harassment complained of.

Recordkeeping

CPCS will ensure that appropriate records of complaints and investigations relating to incidents of workplace violence and workplace harassment are kept, including:

- A copy of the complaint;
- Any records related to the investigation, including notes by taken by the HR Manager or the HR Officer and all material supporting evidence; and
- A copy of the investigation report.

Confidentiality

CPCS will not disclose the name of a complainant or a respondent in an incident of workplace violence or workplace harassment, or the circumstances related to the complaint, to any person except where disclosure is necessary to investigate the complaint or take corrective action with respect to the complaint. CPCS will only disclose the minimum amount of personal information or details necessary for these purposes.

All records of associated with the aforesaid complaints, their investigation and the investigation reports are considered confidential and will not be disclosed to anyone except to the extent required by law. CPCS will do everything reasonably possible to protect the privacy and good name of any individuals involved and to ensure that complainants and respondents are treated fairly and respectfully.

False Complaints

It is a violation of this policy for anyone to knowingly make a false complaint, or to provide false information about a complaint. False, unfounded or frivolous allegations may cause both the respondent and CPCS significant harm. Any employee who knowingly makes a false allegation related to workplace violence or workplace harassment will be subject to immediate disciplinary action, up to and including termination of employment.

Complaints involving Clients, Partners or Subcontractors

In cases where the source of the incident of workplace violence or workplace harassment involves a person other than an employee, upon the filing of a complaint by an employee, no later than 2 working days thereafter the employee, the employee's manager and the HR Manager or the HR Officer will meet to discuss how best to deal with the incident and effect the appropriate corrective action.

In the event the employee does not agree with the corrective action proposed, the matter will be referred to CPCS' managing partners.

Police Assistance

All employees are required to contact the police immediately when an act of violence has occurred in the workplace or when someone in the workplace is threatened with violence. If an employee feels threatened by another employee or any third party present in the workplace or in proximity thereof they should call immediately call "911".

Domestic Violence

If CPCS becomes aware that domestic violence is likely to expose an employee to physical injury in the workplace, CPCS will take every precaution reasonable in the circumstances for the protection of the employee. An employee when reasonably believing that they may be exposed to physical injury in the workplace by reason of domestic violence should inform the HR Manager or the HR Officer and their manager of such a fact.

Should an employee have a legal court order (e.g. restraining order, or "no-contact" order) against another person, the employee is encouraged to notify their manager, and to supply a copy of that order to the HR Manager.

In both instances any information received by CPCS from the employee shall be kept confidential except when there is need to divulge the information in order to ensure the protection of the employee or when required by law.

Recommendations to Victims

CPCS will provide appropriate assistance to any employee who is a victim of violence or harassment in the workplace.

Additionally CPCS recommends that an employee who has been harmed as a result of an incident of violence or harassment at the workplace consult their health care provider for treatment or referral for post-incident counselling, if appropriate.

Refusal to Work

Employees have the right to refuse to work or do particular work if they have a reason to believe that workplace violence is likely to endanger them. Upon such refusal, the employee must report the circumstance of the refusal to their manager or the HR Manager. An investigation will follow in the presence of the employee and workplace safety and health committee representative or, in offices that do not have a workplace safety and health committee representative, a person appointed by the HR Manager.

Policy Review

CPCS will review this policy annually.